

PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 17, 2026 AT 8:30 A.M.

4. M-CV-0093106 CREDITORS ADJUST BUREAU v. ISMAYELIAN, CHRISTINE

Plaintiff's Motion for Terminating Sanctions, Striking Answer and Entering Default, and Request for Monetary Sanctions Against Defendant Christine Ismayelyan

The motion is granted in part.

In the current request, plaintiff seeks both terminating sanctions and monetary sanctions against defendant Christine Ismayelyan. Terminating sanctions may be imposed to either (1) strike the entirety or a part of a pleading; (2) stay the proceedings until the party obeys a discovery order; (3) dismiss all or part of an action; or (4) render the entry of a default judgment. (Code of Civil Procedure section 2023.030(d).) The court also has inherent authority to impose terminating sanctions based upon discovery abuses. (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 197, disapproved on other grounds in *Presbyterian Camp and Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493.) The issuance of terminating sanctions, however, is an extreme remedy. The dismissal of an action is a drastic sanction that is only applied after a party has had an opportunity to comply with a court order yet still fails to do so. (see *Ruvalcaba v. Government Employees Ins. Co.* (1990) 222 Cal.App.3d 1579, 1581.) The totality of the circumstances surrounding the discovery violations are considered when ordering terminating sanctions: (1) whether the party's conduct was willful; (2) the detriment to the propounding party; and (3) the number of formal and informal attempts to obtain discovery. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.)

Here, defendant has failed to comply with the two discovery orders entered on April 17, 2026. The court also imposed monetary sanctions upon defendant at the time both orders were entered. Nonetheless, it is worth reiterating that the purpose of discovery sanctions is to prevent abuse of the discovery process and correct problems presented. (*Do v. Superior Court* (2003) 109 Cal.App.4th 1210, 1213-1214.) It is not a weapon to provide for punishment, forfeiture, or avoid of trial on the merits. (*Ibid.*) Considering the totality of the circumstances and on balance, the issuance of terminating sanctions at this juncture is too extreme a sanction. Nonetheless, the court advises defendant that the continued failure to comply with discovery obligations may result in the court issuing more extreme sanctions, which include the issuance of terminating sanctions.

Plaintiff's request for monetary sanctions is granted. Sanctions in the amount of \$2,171.90 are imposed upon defendant Christine Ismayelyan.